Having said this, the fact remains that the politico-legal structures of several ‘independent’ former colonies under the auspices of national constitutions present a curious incongruity wherein Catholicised institutions advance secularised and Enlightened Protestant OET, with the consequence being that the indigenous worldview invariably gets the rough end of the stick. This is borne out by the fact that in order to avail of the ‘fundamental rights’ guaranteed by constitutions, indigenous OET systems have had to conform to colonial definitions of ‘religion’, ‘religious denomination’ and the like, which are clearly rooted in Christian OET. Therefore, indigenous OETs developed over several millennia have had to approximate and truncate themselves to conform to a political theology that is barely half a millennium old and whose approach to those outside its fold is one of ‘toleration’ until the Word of God pierces and saves the native soul. Further, indigenous beliefs are expected to pass muster on the evidentiary anvils inspired by two sources: the first is the Christian need for a written scripture or the indigenous equivalent of the Word of God, and the second is that indigenous practices, traditions and beliefs have had to satisfy the all-important condition precedent of ‘reason’, that is, secularised, Protestant OET.

Those practices which fail to acquit themselves on these benchmarks and standards are branded ‘orthodox’, ‘traditional’ and ‘anachronistic’, gradually leading to Protestantisation of indigenous OET systems. Naturally, the colonial constitutional framework in most former colonies, while promising equality, has been loaded with values that are more conducive to the Christian worldview. In societies that still have surviving non-Christian populations, the indigenous worldview finds itself constantly on the backfoot, torn between its commitment to keep its way of life alive and the constitutional expectation to validate itself in order to stave off legally sanctioned extinction.

For instance, it is a documented fact that despite the American Indian Religious Freedom Act of 1978, which expressly acknowledges and guarantees the right of Native Americans to practise their indigenous forms of spirituality and worship, they have frequently found themselves in court in an effort to protect their rights. Despite putting faith in the legal process and the promise of equality enshrined in the American constitution, their sacred sites have been destroyed to build roads in the name of development.[41] To assume that such treatment is limited to countries where